

LW6152E: CYBER GOVERNANCE AND LAW

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Cyber Governance and Law

Subject Code

LW - Law

Course Number

6152E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

Information technology is one of the major driving forces in our modern world. It is changing the mode of economic production, the manner of communication, as well the structure and method that we use to govern ourselves. The

emergence of new technologies has created conveniences and efficiencies for the society; but it also brings about multiple new concerns and risks that must be addressed by the legal system. This course focuses on what challenges the technologies have posed to our basic rights and governance scheme, and how the law could respond to those challenges.

The two areas covered by this course are rights and governance: on the one hand, individuals enjoy a bunch of fundamental rights that are protected and facilitated by traditional theories, doctrines, and rules, such as equality, free speech, and privacy; on the other hand, various legal structures and institutions have been established to better govern our social and economic life. The Internet and relevant technologies have reshaped and reformulated both how the rights can be protected and how our society can be governed. This course will explore these issues.

Judicial cases, statutes, scholarly papers, and short commentaries from various jurisdictions will be read and discussed during this course. By critically engaging with the class discussions, students will get a clearer and deeper sense of cutting-edge issues in law; they can also develop the capability of thinking in a critical and interdisciplinary way. In addition, the Socratic method used in this course will train the students to express themselves in a coherent manner, and to think and argue an issue like a lawyer.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if DEC-A1 DEC-A2 DEC-A3 app.)			
1	Understand the information technologies and the challenges they pose to the legal field.		x	x	x
2	Think critically how the law can respond to the challenges brought by the Internet and relevant technologies.		x	x	x
3	Develop the capability of doing independent research on issues of law, technology, and governance.		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Seminars	Students will be introduced to substantive issues related to Internet law, information technologies, and their challenges to human rights and governance.	1, 2, 3	

2	Class Discussions	Students will be encouraged to engage in class discussions and share their analyses or thoughts on the topics covered by the course.	1, 2, 3	
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Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	In-class Group Presentation: Students will be divided into several groups. Each group will be required to present in one class. Apart from the traditional slides-presentation, students are also encouraged to use other methods, such as interactive dialogues, in-class debates, surveys, and AI tools.	1, 2, 3	20	-	No
2	In-class Group Work: Students will be divided into several groups. Each group will be assigned some work to finish in class. The work may include answering questions, doing quizzes, or collaborating on small projects.	1, 2, 3	30	-	No

Continuous Assessment (%)

50

Examination (%)

50

Examination Duration (Hours)

2

Minimum Continuous Assessment Passing Requirement (%)

40

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Final Exam: Students should conduct the 2-hour final exam. Students can bring printed materials to the exam venue but no Internet connection is allowed during the exam. The use of Generative AI tools is not allowed.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain a minimum mark of 40% in both coursework and examination and an overall mark of 40% in order to pass the course.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain a minimum mark of 50% in both coursework and examination and an overall mark of 50% in order to pass the course.

Assessment Rubrics (AR)

Assessment Task

Participation (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Engagement in class discussion, quality of group presentation, responsiveness to the course instructor.

Excellent

(A+, A, A-) Excellent student performance with respect to the achievement of the applicable CILOs.

Good

(B+, B, B-) Good student performance with respect to the achievement of the applicable CILOs.

Fair

(C+, C, C-) Fair student performance with respect to the achievement of the applicable CILOs.

Marginal

(D) Marginal student performance with respect to the achievement of the applicable CILOs.

Failure

(F) Student failed to achieve the applicable CILOs.

Assessment Task

Response paper (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Critical thinking, ability of summarizing issues and raising questions, coherent logic.

Excellent

(A+, A, A-) Excellent student performance with respect to the achievement of the applicable CILOs.

Good

(B+, B, B-) Good student performance with respect to the achievement of the applicable CILOs.

Fair

(C+, C, C-) Fair student performance with respect to the achievement of the applicable CILOs.

Marginal

(D) Marginal student performance with respect to the achievement of the applicable CILOs.

Failure

(F) Student failed to achieve the applicable CILOs.

Assessment Task

Final assignment (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Capability of identifying issues; originality; structure and logic; the ability of framing and solving the issue.

Excellent

(A+, A, A-) Excellent student performance with respect to the achievement of the applicable CILOs.

Good

(B+, B, B-) Good student performance with respect to the achievement of the applicable CILOs.

Fair

(C+, C, C-) Fair student performance with respect to the achievement of the applicable CILOs.

Marginal

(D) Marginal student performance with respect to the achievement of the applicable CILOs.

Failure

(F) Student failed to achieve the applicable CILOs.

Assessment Task

Participation (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Engagement in class discussion, quality of group presentation, responsiveness to the course instructor.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Response paper (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Critical thinking, ability of summarizing issues and raising questions, coherent logic.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Final assignment (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Capability of identifying issues; originality; structure and logic; the ability of framing and solving the issue.

Excellent

(A+, A, A-) High

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Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

Cyberlaw, privacy, data protection, freedom of speech, algorithmic accountability, algorithmic transparency, platform governance, content moderation, decentralized social networks, large language models.

Detailed Syllabus

Introduction to law and technology; from privacy right to data protection right; privacy enhancing technologies and regulations; robotic speech; free speech online; algorithmic bias and black-box; Generative AI and human dignity; government regulation of social media platforms; private governance of platforms; decentralized social networks, moderation by large language models.

The above topics may be subject to minor changes.

Reading List**Compulsory Readings**

Title	
1	Lawrence Lessig, Code 2.0 (Basic Books, 2006).
2	Yochai Benkler, The Wealth of Networks (Yale University Press, 2006).
3	Cass Sunstein, #Republic: Divided Democracy in the Age of Social Media (Princeton University Press 2017).
4	Daniel J. Solove, Conceptualizing Privacy, 90 Calif. L. Rev. 1087 (2002).
5	Aidan Forde, The Conceptual Relationship between Privacy and Data Protection, 1 Cambridge L. Rev. 135 (2016).
6	Tim Wu, Machine Speech, 161 U. Penn. L. Rev. 1495 (2013).

7	Jack Balkin, Free Speech in the Algorithmic Society: Big Data, Private Governance, and New School Speech Regulation, 51 U.C. Davis L. Rev. 1149 (2018).
8	Jarek Gryz & Marcin Rojszczak, Black Box Algorithms and the Rights of Individuals: No Easy Solution to the "Explainability" Problem, 10 Internet Policy Review (2021).
9	Kate Klonick, The New Governors: The People, Rules, and Processes Governing Online Speech, 131 Harv. L. Rev. 1598 (2018).
10	Mark Lemley & Eugene Volokh, Law, Virtual Reality, and Augmented Reality, 166 UPenn. L. Rev. 1051 (2018).
11	Misuraca Gianluca et. al. (eds.), Exploring Digital Government Transformation in the EU - Understanding Public Sector Innovation in a Data-driven Society, Publications Office of the European Union (2020).
12	Aziz Huq, The Public Trust in Data, 110 Georgetown L.J. 333 (2021).

Additional Readings

Title	
1	Additional readings will be provided to the students through CANVAS before the first week.